

STATE OF NEW YORK

6399--A

2025-2026 Regular Sessions

IN SENATE

March 13, 2025

Introduced by Sen. JACKSON -- read twice and ordered printed, and when printed to be committed to the Committee on Higher Education -- recommended to the Committee on Higher Education in accordance with Senate Rule 6, sec. 8 -- committee discharged, bill amended, ordered reprinted as amended and recommitted to said committee

AN ACT to amend the education law, in relation to expanding eligibility for the tuition assistance program

The People of the State of New York, represented in Senate and Assembly, do enact as follows:

1 Section 1. Subdivision 2 of section 667 of the education law, as
2 amended by section 5 of part D of chapter 56 of the laws of 2025, is
3 amended to read as follows:

4 2. Duration. No undergraduate shall be eligible for more than four
5 academic years of study, or five academic years if the program of study
6 normally requires five years. Students enrolled in a program of remedial
7 study, approved by the commissioner in an institution of higher educa-
8 tion and intended to culminate in a degree in undergraduate study shall,
9 for purposes of this section, be considered as enrolled in a program of
10 study normally requiring five years. An undergraduate student enrolled
11 in an eligible two year program of study approved by the commissioner
12 shall be eligible for no more than three academic years of study. An
13 undergraduate student enrolled in an approved two or four-year program
14 of study approved by the commissioner who must transfer to another
15 institution as a result of permanent college closure shall be eligible
16 for up to two additional semesters, or their equivalent, to the extent
17 credits necessary to complete the student's program of study were deemed
18 non-transferable from the closed institution or were deemed not applica-
19 ble to such student's program of study by the new institution. No grad-
20 uate student shall be eligible for more than four academic years of
21 study provided, however, that no graduate student shall be eligible for
22 more than one degree program at the master's, first professional or
23 doctorate level. No student shall be eligible for a total of more than
24 the equivalent of eight years of combined undergraduate and graduate
25 study. Any semester, quarter, or term of attendance during which a

EXPLANATION--Matter in italics (underscored) is new; matter in brackets
[-] is old law to be omitted.

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student receives any award under this article, after the effective date of the former scholar incentive program and prior to academic year nineteen hundred eighty-nine--nineteen hundred ninety, shall be counted toward the maximum term of eligibility for tuition assistance under this section, except that any semester, quarter or term of attendance during which a student received an award pursuant to section six hundred sixty-six of this subpart shall be counted as one-half of a semester, quarter or term, as the case may be, toward the maximum term of eligibility under this section. Any semester, quarter or term of attendance during which a student received an award pursuant to section six hundred sixty-seven-a of this subpart shall not be counted toward the maximum term of eligibility under this section. For the purposes of this section, an academic year shall include any optional academic semester, quarter or term and any award made for such optional academic semester, quarter or term shall not reduce the maximum term of eligibility under this section.

§ 2. Paragraph c of subdivision 3 of section 667 of the education law, as relettered by section 2 of part J of chapter 58 of the laws of 2011, is relettered paragraph d and a new paragraph c is added to read as follows:

c. Amount. The president shall make awards to graduate students in the following amounts:

(i) For each year of graduate study, assistance shall be provided as computed on the basis of the amount which is the lesser of the following:

(A) Five hundred fifty dollars; or

(B) One hundred percent of the amount of tuition (exclusive of educational fees).

(ii) Except for students as noted in subparagraph (iii) of this paragraph, the base amount as determined in subparagraph (i) of this paragraph, shall be reduced in relation to income as follows:

<u>Amount of income</u>	<u>Schedule of reduction of base amount</u>
<u>(A) Less than two thousand dollars</u>	<u>None</u>
<u>(B) Two thousand dollars or more, but not more than twenty thousand dollars</u>	<u>Seven and seven-tenths per centum of the excess over two thousand dollars</u>

(iii) For students who have been granted exclusion of parental income and were single with no dependent for income tax purposes during the tax year next preceding the academic year for which application is made, the base amount as determined in subparagraph (i) of this paragraph, shall be reduced in relation to income as follows:

<u>Amount of income</u>	<u>Schedule of reduction of base amount</u>
<u>(A) Less than one thousand dollars</u>	<u>None</u>
<u>(B) One thousand dollars or more, but not more than five thousand six hundred sixty-six dollars</u>	<u>Twenty-six per centum of the excess over one thousand dollars</u>

1 (iv) If the amount of reduction is not a whole dollar, it shall be
2 reduced to the next lowest whole dollar.

3 (v) The award shall be the net amount of the base amount determined
4 pursuant to subparagraph (ii) or (iii) of this paragraph but the award
5 shall not be reduced below seventy-five dollars. If the income exceeds
6 the maximum amount of income allowable under subparagraph (ii) or (iii)
7 of this paragraph, no award shall be made.

8 § 3. This act shall take effect on the first of July next succeeding
9 the date on which it shall have become a law.